

23STCV24340 23STCV24340

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-08-21

Motion: PLAINTIFF'S MOTION TO ENFORCE SETTLEMENT AND ENTER JUDGMENT

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Case Number: 23STCV24340 Hearing Date: August 21, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

ISABELLA

HADDAD, an individual,

Plaintiff,

vs.

BACHI BUS LLC, a California limited liability company;

BACHI BUS BROS LLC, a California limited liability company; JAMELLE HOLIEWAY,

an individual; and DOES 1 through 100, inclusive,

Defendants.

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CASE

NO.: 23STCV24340

[TENTATIVE] ORDER RE: PLAINTIFF'S
MOTION TO ENFORCE SETTLEMENT AND ENTER JUDGMENT

Dept. 733

8:30 a.m.

August 21, 2026

I.

INTRODUCTION

This is a
harassment case. Plaintiff Isabella Haddad ("Plaintiff") alleges that she was
terminated after being sexually and physically harassed and was subjected to a
hostile work environment.

On October 5, 2023,
Plaintiff filed a complaint against Defendants Bachi Bus LLC ("Bachi Bus"),
Bachi Bus Bros LLC ("Bachi Bus Bros") and Jamelle Holieway ("Holieway")
(collectively, "Defendants").

On March 13, 2024,
Plaintiff filed a first amended complaint ("FAC"), alleging causes of action
(1) Sexual Harassment in Violation of FEHA (Hostile Work Environment), (2)

Violation of Cal. Civil Code § 51.7 (Ralph Act – Gender Violence), (3) Discrimination on the Basis of Gender in Violation of FEHA, (4) Failure to Investigate and Prevent Discrimination and Harassment from Occurring in Violation of FEHA, (5) Wrongful Constructive Termination of Employment in Violation of Public Policy, and (6) Failure to Pay Wages Due and Owing Upon Discharge.

On October 17, 2025, the Court denied Plaintiff's motion to enforce settlement.

On May 6, 2026, Plaintiff filed the instant motion to enforce settlement.

No opposition was filed.

II.

LEGAL STANDARD

Enforcement of settlement agreements is governed by Code of Civil Procedure section 664.6. This statute provides, in relevant part:

If the parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.¿

(Code Civ. Proc. § 664.6(a).)

Strict compliance with the statutory requirements is necessary before a court can enforce a settlement agreement under this statute. (Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc. (2002) 103 Cal.App.4th 30, 37.) Thus, to enforce a written settlement agreement under section 664.6, the following three elements must be met: (1) the parties must have come to a meeting of the minds on all material points; (2) there must be a writing that contains the material terms of the agreement; and (3) the writing

must be signed by the parties. (Weddington Productions, Inc. v. Flick (1998) 60 Cal.App.4th 793, 797-798.)

“[I]n determining whether the parties entered into a binding settlement of all or part of a case, a trial court should consider whether (1) the material terms of the settlement were explicitly defined, (2) the supervising judicial officer questioned the parties regarding their understanding of those terms, and (3) the parties expressly acknowledged their understanding of an agreement to be bound by those terms.” (In re Marriage of Assemi (1994) 7 Cal.4th 896, 911.)

The Court is empowered under this section to resolve reasonable disputes over the terms of a settlement. (Machado v. Myers (2019) 39 Cal.App.5th 779, 795.) “A trial court, when ruling on a section 664.6 motion, acts as a trier of fact. Section 664.6’s ‘express authorization for trial courts to determine whether a settlement has occurred is an implicit authorization for the trial court to interpret the terms and conditions to settlement.’” (Skulnick v. Roberts Express, Inc. (1992) 2 Cal.App.4th 884, 889 (citations omitted).) The Court does not insert provisions into the parties’ agreement, but applies the rules of contractual interpretation to interpretation of the settlement. (Id. at p. 792.) When extrinsic evidence is necessary, the Court may decide the motion on declarations alone. (Richardson v. Richardson (1986) 180 Cal.App.3d 91, 97; Greisman v. FCA US, LLC (2024) 103 Cal.App.5th 1310, 1326 [“The trial court may consider declarations of the parties and their counsel, any transcript of the stipulation orally presented, and recorded by a certified reporter, and any additional oral testimony.”].)

“The power of the trial court under Code of Civil Procedure section 664.6 ... is extremely limited. [¶] ... The court is powerless to impose on the parties more restrictive or less restrictive or different terms than those contained in their settlement agreement.” (Hernandez v. Board of Education (2004) 126 Cal.App.4th 1161, 1176.)

III.

DISCUSSION

Plaintiff seeks to enforce a

settlement agreement and enter judgment for 30,000.00

(representing the Admitted Total

Debt of \$35,000.00 less the \$5,000.00 partial payment received on April 7, 2026) expressly acknowledged by Defendant, plus \$3,562.50 in attorneys' fees and \$73.41 in costs.

Here,

Plaintiff provides that following the Court's initial denial of Plaintiff's motion to enforce settlement, the parties executed a new Settlement and Mutual Release of Claims Agreement on January 9, 2026. (Moshkovich Decl., ¶ 2, Ex. B.) The Agreement was signed by Plaintiff, Ms. Haddad, Defendant, Mr. Holieway, Simon Moshkovich on behalf of Mercer Legal Group, PC Plaintiff's attorney, and Bryan E. Luther on behalf of Albright, Yee & Schmit, APC, Defendant's attorney. (Ibid.)

The Agreement

requires payment in two installments: Initial Payment: \$5,000.00, to be delivered to Plaintiff's Counsel by April 1, 2026; and Final Payment: \$15,000.00, to be delivered to Plaintiff's Counsel by May 1, 2026. Section 16(a) further provides that if the Settlement Payment is not received in compliance with the payment schedule, Plaintiff's Counsel shall send written notice of default to Defendant's Counsel, after which Defendant shall have five (5) calendar days to cure. If, after the expiration of the fifth day of the cure period, the Settlement Payment has not been received in full, "the offer of a discount is strictly and automatically revoked, and Plaintiff shall be entitled to the immediate entry of a Stipulated Judgment against Defendant for the full Admitted Total Debt of \$35,000.00, less any partial payments made, plus any reasonable attorney fees and costs incurred in enforcing this provision." (Moshkovich Decl., ¶ 2, Ex. B at § 16(a).) Thus, Plaintiff agreed to accept the reduced Settlement Payment of \$20,000.00 as full satisfaction of her claims against Defendant, conditioned solely on timely receipt of payment in accordance with Section 2(B) of the Agreement. (Id. at §§ 2(A)-(B).)

Plaintiff provides

that Holieway failed to deliver the initial payment of \$5,000.00 by April 1, 2026. On April 2, 2026, Plaintiff's Counsel further advised that Holieway had five (5) calendar days to cure the default, through April 6, 2026, failing which the Admitted Total Debt of \$35,000.00 would become immediately due and

owing and Plaintiff would seek to enforce the terms of the Agreement, including a request for attorneys' fees. (Id. ¶ 6, Ex. E.)

On April 7, 2026, Holieway transmitted a wire transfer of \$5,000.00 to Plaintiff's Counsel. (Id. ¶ 7.) However, Holieway failed to deliver the final installment of \$15,000.00 by May 1, 2026. (Id. ¶ 8.) Plaintiff's Counsel sent a second written notice of default to Holieway's counsel advising that Holieway was in default as the final installment had not been received by May 1, 2026, and that Holieway had five (5) calendar days to cure, through May 6, 2026. Holieway failed to cure. (Ibid.)

The Court finds that it has jurisdiction to enforce the agreement. The Agreement states that "[t]his Agreement is admissible and subject to disclosure for the purpose of enforcing this Agreement pursuant to California Code of Civil Procedure Section 664.6." (Id., Ex. B at § 16(b).) Also, on March 19, 2026, the Court dismissed the action without prejudice and expressly retained jurisdiction to enforce the settlement pursuant to section 664.6. (Id. ¶ 4, Ex. D.) The Agreement also is signed by all parties in the action, as stated above. (Id., Ex. B at p. 9.)

The terms of the agreement are specific and certain and provides that Holieway was to pay a total of \$20,000.00 pursuant to the payment schedule stated above, to Plaintiff in consideration of the parties mutually release each other of all claims arising from the instant action. If Holieway failed to pay the \$20,000.00 pursuant to the payment schedule, "Ms. Haddad's counsel shall send Mr. Holieway's counsel an email stating that Mr. Holieway has defaulted under the terms of this Agreement, after which Mr. Holieway shall have five (5) calendar days to cure the default. If, after the expiration of the fifth (5th) day of the cure period, the Settlement Payment has not been received in full, the offer of a discount is strictly and automatically revoked, and Plaintiff shall be entitled to the immediate entry of a Stipulated Judgment against Defendant for the full Admitted Total Debt of \$35,000.00." (Id., Ex. B at § 16(a).) Thus, by the express terms of Section 16(a), the initial discount of \$20,000.00 offered to Holieway has been automatically revoked, and Holieway is therefore subject to the full "Admitted Total Debt" of \$35,000.00. The Agreement is clear and unambiguous as to the parties' obligations, contains all the material terms, is in writing, and all parties have signed it. It is enforceable.

Additionally, the Agreement states that "the Parties relative to the negotiation of this Agreement are waived with respect to this Agreement. In the event any legal action or other proceeding is brought to enforce or interpret any term of this Agreement, or because of an alleged dispute, breach, default or misrepresentation in connection with any of the provisions of this Agreement, the prevailing party shall be entitled to recover reasonable attorney fees and all reasonable litigation related costs and expenses incurred in that action or other proceeding, in addition to any other relief to which she, or it may be entitled." (Id., Ex. B at § 16(b).) Plaintiff's counsel declares that his hourly rate is \$475.00 and he has expended a total of 7.5 hours on settlement enforcement, plus \$73.41 in costs, which the Court finds reasonable. (Id. ¶ 9.)

Plaintiff is therefore entitled to immediate entry of judgment in the amount of \$30,000.00 (the full Admitted Total Debt of \$35,000.00, less the \$5,000.00 partial payment received on April 7, 2026), plus an attorney fee award of \$3,635.91, which includes costs.

IV.

CONCLUSION

Plaintiff's motion to enforce settlement and enter judgment is GRANTED.

Dated this 21st
day of August 2026

Hon. Gary
D. Roberts

Judge
of the Superior Court